

Prudential Capital Markets Ltd, vs I.K. Kukreja, on 23 November, 2007

IN THE STATE COMMISSION : DELHI

(Constituted under Section 9 clause (b) of the Consumer Protection Act, 1986)

Date of Decision: 23-11-2007

Appeal No. A-1939/2003

(Arising from order dated 26-09-2002 passed by District Forum-III, Janakpuri, New Delhi in complaint Cases No. M/868/99, M/5075/2000, M/4092/2000, M/4093/2000, M/4094/2000, M/4095/2000, M/4096/2000, M/4097/2000, M/4098/2000, M/4099/2000, M/4100/2000, M/297/2001, M/1754/99, M/1755/99, M/744/2002, M/745/2002 and M/746/2002)

Prudential Capital Markets Ltd, Appellant

182, Old Court House Corner, Tobacco House, IInd Floor, Calcutta.

Versus

1. I.K. Kukreja, Respondent No.1 — F-82, Kirti Nagar, Delhi (M/868/99)
2. Anju Guha, Respondent No.2 — 40/88, C.R. Park, New Delhi (M/5075/2000)
3. Sharmila Kapur, Respondent No.3 — C-56, Kirti Nagar, New Delhi (M/4092/2000)
4. S. Soni, Respondent No.4 — C-56, Kirti Nagar, New Delhi (M/4093/2000)
5. Lily, Respondent No.5 — C-56, Kirti Nagar, New Delhi (M/4094/2000)
6. Ashima Kapur, Respondent No.6 — C-56, Kirti Nagar, New Delhi (M/4095/2000)
7. Deepika Kapoor, Respondent No.7 — C-56, Kirti Nagar, New Delhi (M/4096/2000)
8. Yoginder Kapur, Respondent No.8 — C-56, Kirti Nagar, New Delhi (M/4097/2000)
9. Nisha Kapoor, Respondent No.9 — C-56, Kirti Nagar, New Delhi (M/4098/2000)
10. Chandra Kanta Kapoor, Respondent No.10 — C-56, Kirti Nagar, New Delhi (M/4099/2000)
11. Rashmi Kapoor, Respondent No.11 — C-56, Kirti Nagar, New Delhi (M/4100/2000)
12. Harbal Singh Gaba, Respondent No.12 — 40/42, C.R. Park, New Delhi (M/297/2001)
13. Prem Kumar, Respondent No.13 — 40/41, C.R. Park, New Delhi (M/1754/99)
14. Prem Kumar, Respondent No.14 — 40/41, C.R. Park, New Delhi (M/1755/99)
15. B.K. Chadha, Respondent No.15 — 40/43, C.R. Park, New Delhi (M/744/2002)
16. B.K. Chadha, Respondent No.16 — 40/43, C.R. Park, New Delhi (M/745/2002)
17. B.K. Chotha, Respondent No.17 — 90/41, C.R. Park, New Delhi (M/746/2002)

CORAM:

Justice J.D. Kapoor - President

Ms. Rumnita Mittal - Member

1. Whether reporters of local newspapers be allowed to see the judgment?
2. To be referred to the Reporter or not?

JUSTICE J.D. KAPOOR, PRESIDENT (ORAL)

As many as 23 complaints were decided by the District Forum vide impugned order dated 17-07-2000 directing the appellant to pay to the respondents the amount deposited by them as shown in column 6 of Annexure I and also pay interest @ 15% with effect from the date shown against column 17 against each case and cost of Rs. 500/- to each of the respondent.

2. Feeling aggrieved, the appellant has preferred this appeal.

3. There is no dispute that the respondents had deposited the amount as detailed in column 4 of annexure I by way of Fixed Deposit Scheme of the appellant. There is also no dispute about the fact that the appellant failed to pay back the maturity amount. What is being disputed by the appellant is that the High Court of Calcutta vide order dated 05-12-2001 ordered for winding up the appellant-Company and appointed Official Liquidator u/s 446 of the Companies Act. Therefore provisions of section 22 of the SICA barred the complaint.